

(48)

Tentative Ruling

Re: ***Olmos v. Volkswagen Group of America, Inc., et al.***
Superior Court Case No. 25CECG03383

Hearing Date: August 6, 2026 (Dept. 503)

Motion: By Defendant CLVW, LLC for Judgment on the Pleadings

Tentative Ruling:

To grant defendant CLVW, LLC's motion for judgment on the pleadings to the fourth cause of action, with leave to amend. (Code Civ. Proc., § 438.)

Plaintiff is granted 30 days' leave to file an amended complaint, which will run from service by the clerk of the minute order. New allegations/language must be set in **boldface** type.

**If oral argument is timely requested, it will be entertained on
Tuesday, August 11, 2026, at 3:30 p.m. in Department 503.**

Explanation:

Motion for Judgment on the Pleadings

A motion for judgment on the pleadings has the same function as a general demurrer but is made after the time for demurrer has expired, and so the rules governing demurrers apply. (*Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999.)

As in demurrers, grounds for the motion must appear on the face of the challenged pleading or on facts which the court may judicially notice. (*Saltarelli & Steponovich v. Douglas* (1995) 40 Cal.App.4th 1, 5; Code Civ. Proc., § 438, subd. (d).)

When reviewing a pleading, a demurrer or motion for judgment on the pleadings admits the truth of all material allegations and a Court will "give the complaint a reasonable interpretation by reading it as a whole and all its parts in their context." (*People ex re. Lungren v. Superior Court* (1996) 14 Cal.4th 294, 300.) The standard of pleading is very liberal and a plaintiff need only plead "ultimate facts." (*Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6.) However, a plaintiff must still plead facts giving some indication of the nature, source, and extent of the cause of action. (*Semole v. Sansoucie* (1972) 28 Cal.App.3d 714, 719.)

In the case at bench, defendant CLVW, LLC, doing business as Volkswagen of Clovis ("Defendant") brings this motion for judgment on the pleadings with regard to the fourth cause of action for negligent repair on the basis that the Complaint does not allege sufficient facts to state a cause of action.

Economic Loss Rule

Defendant moves for judgment on the pleadings on the grounds that recovery under the Fourth Cause of Action for negligent repair is barred by the economic loss rule.

The economic loss rule bars recovery in tort for economic damages caused by defective product, unless those losses are accompanied by some form of personal injury or damage to property other than the product itself. (*KB Home v. Superior Court* (2003) 112 Cal.App.4th 1076, 1085.) Economic loss consists of damages for inadequate value, costs of repair and replacement of the defective product or consequent loss of profits—without any claim of personal injury or damages to other property. (*Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979, 988.) The economic loss rule applies where a complaint fails to allege “harm above and beyond a broken contractual promise.” (*Ibid.*)

Here, the Complaint seeks only economic losses. Namely, the Complaint alleges damages by way of a defective vehicle due to, for example, engine coolant leaking and related error codes. These are damages arising out of a defective product or a type of repair that constitute economic loss. The Complaint does not state that Plaintiff has sustained personal injury or damage to other property as a result of Defendant's alleged breach. As such, the economic loss rule applies, and damages in tort are barred. No opposition was filed to suggest otherwise.

The motion for judgment on the pleadings of the fourth cause of action is granted as Plaintiff failed to state facts sufficient to constitute a cause of action against Defendant. Plaintiff is granted leave to amend the Complaint as it may be possible to allege damages that give rise to an exception to the economic loss rule.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 8/4/2026.
(Judge's initials) (Date)